

in the moving papers, including claims that Plaintiff was properly served with the motion and had notice of it through a March 12, 2026 hearing. Plaintiff states she was not served with the motion to strike, that the Court informed her of the April 29, 2026 hearing date, and that Defendant failed to meet and confer before filing the motion as required by Code of Civil Procedure section 435.5. Defendant objected to the sur-reply on April 24, 2026, on the ground that no leave was sought or granted and that the arguments either were or could have been raised in Plaintiff's opposition.

In its discretion, the Court has reviewed both filings. The sur-reply does not affect the disposition of the motion, which is denied on standing grounds. The Court declines to strike the sur-reply. Going forward, all parties shall comply with the Code of Civil Procedure and the California Rules of Court. Code of Civil Procedure section 435.5, subdivision (a) requires the moving party, before filing a motion to strike, to meet and confer with the party who filed the pleading. Subdivision (a)(3) requires the moving party to file a declaration with the motion stating either the means by which the parties met and conferred, or that the responding party failed to respond or to meet and confer in good faith. Defendant's moving papers contain no such declaration and reflect no meet-and-confer effort.

The sur-reply identifies the defendant as Tarin Holdings LLC and refers to Qasim Tarin as its agent. The FAC, however, names "Tarim Holdings, LLC." Plaintiff shall have the opportunity to correct this discrepancy in the amendment ordered below.

Accordingly, the Court makes the following, additional orders:

1. On the Court's own motion, Plaintiff is granted leave to file a Second Amended Complaint (SAC) naming the intended defendant in both the SAC and the summons. The SAC may name the LLC, Mr. Tarin individually, or both, as Plaintiff deems appropriate. Plaintiff shall file the SAC and obtain issuance of a summons thereon **no later than May 22, 2026**, and shall contemporaneously serve a copy of the summons and SAC by email on Attorney McClelland or other counsel of record.
2. Moving counsel represents Mr. Tarin, who states that he is a member of Tarin Holdings LLC, and previously offered to accept email service of the FAC. **No later than June 5, 2026**, moving counsel shall notify Plaintiff in writing whether counsel will accept service of the summons and SAC. This requires only a written response and does not order counsel or any party to accept service.
3. If there is no agreement to accept service, Plaintiff shall serve the summons and SAC on defendant/s in the manner required by law, and file proof of service with the Court, **no later than July 6, 2026**.
4. A further case management conference is set for **July 23, 2026 at 8:30 a.m. in Department 16**. The case management statements shall advise the Court of the status of service.

17. 9:00 AM CASE NUMBER: C24-01654
CASE NAME: MARIA ROSILLO VS. ANTIOCH DUNES HEALTHCARE, LLC, A LIMITED LIABILITY COMPANY
*HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM
FILED BY: ROSILLO, MARIA ISALIA MONCADA

TENTATIVE RULING:

Summary

Plaintiff Mari Isalia Mondada Rosillo (“Plaintiff”) Motion for Final Approval and Judgment of Class Action Settlement with Defendant Antioch Dunes Healthcare, LLC (“Defendant”) is **granted** as set forth below. **No appearance is required at the hearing on April 29, 2026.**

Background

This is a wage and hour class action and representative action for alleged Labor Code violations and claims for civil penalties pursuant to the California Private Attorneys General Act, Labor Code sections 2698, et seq. (“PAGA”). Plaintiff Maria Isalia Moncada Rosillo (“Plaintiff”) seeks final approval of a proposed \$300,000.00 non-reversionary settlement with Defendant Antioch Dunes Healthcare, LLC. (“Defendant”) (together with Plaintiff, the “Parties”).

The proposed Settlement will provide substantial monetary payments to 2231 Class Members, consisting of any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the period from June 25, 2020, through June 11, 2025 (the “Class Period”), and did not sign an arbitration agreement. As set forth more fully below, Plaintiff represents that the proposed Settlement satisfies all criteria for approval under California law. Plaintiff contends that the Settlement was reached after extensive investigation, discovery, and arm’s-length negotiations. Thus, the Settlement is fair, reasonable, and adequate and is in the best interests of the Class.

The Motion seeks an order:

1. Certifying a Class, for settlement purposes only;
2. Approving the Settlement as fair, reasonable, and adequate as to Class Members;
3. Finding Class Members were given, in a reasonable manner under the circumstances, due and adequate notice of the proposed Settlement and advised of their right to participate in, object to, or exclude themselves from the Settlement;
4. Directing consummation of the terms and provisions of the Settlement;
5. Confirming the appointment of Plaintiff as the Class Representative, for settlement purposes only, and approving a service award in the amount of \$7,500.00, in addition to the amount she is eligible to receive as a Class Member, in recognition for her role and service as the Class Representative, for the risks and work attendant to that role, and for her general release of claims;
6. Confirming the appointment of Class Counsel Moon Law Group, PC, as Class Counsel, for settlement purposes only, and approving a payment of \$100,000.00 for reasonable attorneys’ fees and \$24,029.32 for reimbursement of litigation costs actually incurred;
7. Confirming the appointment of ILYM Group, Inc. as the Administrator, finding the Administrator fulfilled its initial notice and reporting duties under the Settlement, and approving a payment of \$5,000.00 for the costs of administration;
8. Approving payment of \$6,500.00 to the California Labor and Workforce Development Agency and \$3,500.00 to the Aggrieved Employees in settlement and release of claims for civil penalties under PAGA, and barring further claims for the Released PAGA Claims notwithstanding the submission of any Request for Exclusion from the Settlement;

9. Pursuant to California Code of Civil Procedure section 384, following the expiration of the 180-day check-cashing deadline, should there be any uncashed checks, directing the Administrator to transmit the funds represented by any uncashed or undeliverable checks to the California State Controlled Unclaimed Property Fund;
10. Directing the clerk of the Court to enter Judgment;
11. Directing the Administrator to provide notice of Judgment to Class Members by posting an electronic copy on a website maintained by the Administrator for no less than ninety (90) calendar days following entry thereof; and
12. The Parties agree that, after entry of Judgment, the Court will retain jurisdiction over the Parties, Action, and the Settlement solely for purposes of (i) enforcing the Settlement and/or Judgment, (ii) addressing settlement administration matters, and (iii) addressing such post-Judgment matters as are permitted by law.

Analyses

Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. The Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provides guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Key Terms of the Proposed Settlement

Under the Settlement, Defendant will pay a non-reversionary, all-inclusive amount of no less than \$300,000.00 to resolve this action. (Settlement, ¶¶ 1.21, 3.1.) The key terms include:

1. Class Members and Class Period: The proposed Class contains 223 members who cumulatively worked 7,126 Workweeks and is defined as any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the Class Period, and did not sign an arbitration agreement. (Id. at ¶ 1.5; Admin Decl., ¶ 5.) The “Class Period” is June 25, 2020, through June 11, 2025. (Settlement, ¶ 1.12.)
2. Aggrieved Employees and PAGA Period: The Class contains 236 Aggrieved Employees who worked 5,226 PAGA Pay Periods during the PAGA Period. (Admin Decl., ¶ 5.) “Aggrieved Employee” is defined as any person who worked for Defendant in California as an hourly, non-exempt employee at any time during the PAGA Period. (Settlement, ¶ 1.4.) The “PAGA Period” is June 22, 2023, through June 11, 2025. (Id. at ¶ 1.31.)
3. Non-reversionary Gross Settlement Amount: This amount is \$300,000.00 and excludes Defendant’s employer’s share of payroll taxes. (Settlement, ¶ 3.1.) No portion will revert to Defendant. (Id. at ¶ 3.1.)
4. Escalator Clause: Following preliminary approval, the Administrator processed the Class Data and determined Class Members cumulatively worked 7,126 Workweeks, which is below the escalator threshold of 7,210 Workweeks. (Settlement, ¶ 8; Admin Decl., ¶ 5.) Accordingly, the Escalator Clause was not triggered.
5. Net Settlement Amount: The total amount of money available for payout and distribution to Participating Class Members in Individual Class Payments, which is the Gross Settlement Amount less the following payments, in amounts as finally approved by the Court: (i) the Class Representative Service Payment of up to \$7,500.00 to Plaintiff; (ii) Administration Expenses Payment of up to \$5,000.00; (iii) PAGA Penalties in the amount of \$10,000.00, which will be distributed as 65% (\$6,500.00) to the LWDA and 35% (\$3,500.00) to Aggrieved Employees; (iv) the Class Counsel Fees Payment of not more 33.33% of the Gross Settlement Amount (currently estimated to be \$100,000.00); and (v) and the Class Counsel Litigation Expenses Payment of up to \$25,000.00. (Id. at ¶¶ 1.28, 3.2.1-3.2.5.) In the event the amounts finally approved are less, the remainder will revert to Participating Class Members. (Id. at ¶¶ 3.2.1-3.2.5.2.) At this time, Class Counsel have incurred \$24,029.32 in total costs. (Moon Decl., ¶ 14, Exh. 4.)
6. Administrator and Costs: The Parties jointly appointed ILYM Group, Inc. as the neutral entity to administer this Settlement. (Id. at ¶ 1.2, 7.1.) The Administrator’s final costs are \$5,000.00. (Admin Decl., ¶ 17.)
7. Individual Class Payment: Participating Class Members will receive a pro rata share of the Net Settlement Amount calculated according to the number of Workweeks worked during the Class Period. (Settlement, ¶ 1.23.) “Workweek” means any week during which a Class Member worked for Defendant for at least one day, during the Class Period. (Id. at ¶ 1.45.)
8. Individual PAGA Payment: Aggrieved Employees will receive a pro rata share of 35% of the PAGA Penalties calculated according to the number of PAGA Pay Periods worked during the PAGA Period. (Id. at ¶ 1.24.) “PAGA Pay Period” means any Pay Period during which an Aggrieved Employee worked for Defendant for at least one day during the PAGA Period. (Id. at ¶ 1.30.)
9. There are other key terms, which form part of the proposed settlement, which the Court has reviewed, but feels is not necessary to repeat here in this tentative ruling.

Plaintiff seeks one-third (33.3%) of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel provides an estimated lodestar fee of \$85,157.59. This is based on a total of 111.5 hours, with hourly rates ranging from \$600-950.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. The Court finds that \$100,000 for class counsel fees are reasonable and approved. Litigation costs of \$24,029.32 are reasonable and are approved. The Court finds that the amount of \$5,000 to ILYM for its settlement administration expenses is reasonable. The Court finds that Class Representative Service payment of \$7,500 is reasonable and is approved. The proposed payment to LWDA of \$6,500 is reasonable and approved. The PAGA Allocation to Aggrieved Employees in the amount of \$3,500 is reasonable and approved.

The Court finds that the moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

1. The motion is **granted**. The Court will execute the proposed order lodged on April 7, 2026. The Court sets a compliance hearing dates regarding distribution as set forth in the proposed order.
2. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
3. No appearance is required at the hearing on March 4, 2026.

18. 9:00 AM CASE NUMBER: C25-01464
CASE NAME: THREEZ INVESTMENTS, INC. VS. AMAN POHYAR
***HEARING ON MOTION IN RE: TO DISMISS PLAINTIFF'S COMPLAINT**
FILED BY: POHYAR, AMAN
TENTATIVE RULING:

Defendant Aman Pohyar's Motion to Dismiss is **denied**.

Background

Plaintiff Threez Investments, Inc. (Threez) filed this action against Defendant Aman Pohyar (Pohyar) arising from the purchase and sale of a single-family home at 8053 Kelok Way in Clayton.

In 2017, the property was listed on the MLS for \$199,500. The public remarks on the listing said the house was "not in livable condition per the City of Clayton" and that soil movement in the area needed to be corrected. On July 31, 2017, the City of Clayton issued a "red tag" notice declaring the house uninhabitable because it is located on the top of a "slow-moving landslide" affecting the front